

-

File No.: EXP202208492

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for the Protection of Data on July 15, 2022. The complaint is directed against Mr. B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at FINCA WITH CATASTRAL REFERENCE ***REFERENCIA.1, ***DIRECCIÓN.1, CÓRDOBA, with indications of a possible breach of the provisions of personal data protection regulations.

The reasons supporting the complaint are as follows:

The complainant states that the respondent, who owns a property adjacent to a property owned by the complainant, has installed surveillance cameras that are directed towards the complainant's property, without authorization for doing so.

The complainant provides cadastral documentation of their property and images of the camera locations.

The documents submitted are:

- Photographic report
- Others

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on August 11, 2022, as noted in the acknowledgment of receipt in the file.

On August 18, 2022, this Agency received a response indicating that the cameras were installed due to acts of vandalism on their property and that they do not record images, only visualize them. The respondent states that they have the authorization of all neighbors on their street to capture their houses, except for one neighbor who has not provided it. They have not submitted images of the camera's field of view to assess whether the capture of public space is proportional or not, and the photograph of the informative sign attached to their response does not allow for an appreciation of the content of the sign. On August 26, 2022, the respondent was requested to rectify by providing the missing documentation. The written notification was made on September 7, 2022, but as of today, there is no record of them having rectified or provided the information to this Agency.

THIRD: On October 15, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On January 23, 2023, the Director of the Spanish Agency for the Protection of Data decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringements of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and the respondent submitted a written statement in which, in summary, they stated: "With the information I received from you, which said that it is not allowed by law to record the street. If I cannot record the street, the recording is useless, and for this reason, I remove all the cameras. A camera that records from above and straight down can only capture the tops of thieves, not their faces or the license plate of the car they use to commit the crime. It cannot see the person's shape or how they walk. = (NOTHING)

But if the law says that vandals have more rights than the one suffering from vandalism. I just have to obey. And this has led to the removal of all the cameras.”

SIXTH: On May 8, 2023, a resolution proposal was made, proposing to the Director of the Spanish Agency for the Protection of Data the filing of the complaint against Mr. B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

The resolution proposal was notified on March 23, 2022, and after the period granted for allegations had elapsed, no allegations were presented regarding said proposal.

SEVENTH: On October 3, 2023, a written notification from the Director of the AEPD was sent to the respondent, in accordance with Article 90.2 of the LPACAP, indicating that “it is considered that the following infringements exist in the present sanctioning file, processed against Mr. B.B.B., without prejudice to other corrective measures that may apply:

- An infringement of Article 5.1.c) of the GDPR, classified in Article 83.5.a) of the GDPR, which would correspond to an administrative fine of €300.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/12

- A violation of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR, which would correspond to an administrative fine of €300." Furthermore, a period of FIFTEEN DAYS is granted for you to present any arguments you deem necessary in your defense against the violation of Articles 5.1.c) and 13 of the GDPR and to submit any documents and information you consider relevant, in accordance with Article 89.2 of the LPACAP.

EIGHTH: On October 11, 2023, the allegations to the Director's Note are received, which summarize as follows:

"According to the GUARDIA CIVIL, this email states: That the case is time-barred. Since there are no cameras, there are no recordings, there is no trial. This case is closed. (...)

WE DO NOT HAVE ANY SURVEILLANCE CAMERAS or other cameras mounted in the house, nor anywhere else.

(...).

But we, DO NOT have cameras.

The next photo is behind our house.

As you can see. There are no cameras here either and I have never had any.

This is the side of our house that overlooks the property of the neighbor who continuously reports us.

Can the neighbor show with a photo that we have cameras?"

PROVEN FACTS

FIRST: The claimant states that the respondent, who owns a property adjacent to a property owned by the claimant, has installed surveillance cameras that are directed at the claimant's property, without having the authorization to do so.

They provide cadastral documentation of the property owned by the claimant and images of the location of the cameras.

SECOND: The respondent states in their allegations to the initiation agreement that they have removed all the cameras.

They provide an image of the facade of their house where no camera is visible.

In the latest allegations, they provide a photo of the rear of their house and indicate that there are no cameras there either and that they have never had any. It is the side of their house that overlooks the neighbor's property.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47,

48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Response to Allegations

In response to the allegations presented by the respondent, the following should be noted:

After examining the allegations of the respondent, both to the initiation agreement and to the notification from the Director dated October 3, 2023, it is noted that the respondent had installed cameras that were not compliant with data protection regulations. The fact that they have removed them does not prevent the violation from having already occurred.

On the other hand, regarding the assertion that, according to the respondent, the Guardia Civil states that the case is time-barred and that there is no trial; it should only be noted that this is not a judicial procedure, but a sanctioning procedure that remains open and has not yet expired.

Finally, it is necessary to point out that if the neighbor has installed a camera directed at their property, they may file a complaint with this Agency, which would lead to a different procedure than the one at hand.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of physical persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

IV

Violation

5/12

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD states that individuals or legal entities, whether public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of individuals and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the data subjects with the information specified in Articles 13 and 14 of the GDPR.

In order for the information duty set out in Article 12 of the GDPR to be fulfilled in a concise and understandable manner for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this regard, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This information duty will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether indoors or outdoors. If the monitored space has several entrances, the distinguishing sign of the video-monitored area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The aim is to make the context of the surveillance clear.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed.”

This means that in a specific processing operation, only the relevant personal data that is necessary for the purpose for which it is processed may be processed. The processing must be appropriate and proportional to the purpose it is directed at. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing of the same.

In accordance with the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Corps.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose.

That is to say, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose or it is impossible to avoid it due to their location. And, in such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

Installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed at the private property of neighbors with the aim of intimidating them or affecting their private sphere without a justified cause is not permitted.

Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

V

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/12

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of individuals and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved by other means that are less intrusive to the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform those affected, as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be complied with.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information will be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a place easily accessible to the affected individual, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The processing of images through the installation of camera systems or video cameras must be lawful and comply with the principles of proportionality and data minimization, as already indicated.

5.- The images may be retained for a maximum period of one month, except in cases where they must be retained to prove the commission of acts that threaten the integrity of individuals, property, or facilities.

In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of processing activities carried out under its responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),

- the Guide on the use of video cameras for security and other purposes,

- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing it carries out, and, if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

VI

Administrative Infraction

In accordance with the proven facts established during the sanctioning procedure, it is considered that the facts presented violate the provisions of Articles 5.1.c) and 13 of the GDPR, constituting two infractions classified under Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of the data subjects under Articles 12 to 22; (...)

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/12

For the purposes of the statute of limitations for infringements, the infringement mentioned in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and will be subject to a three-year statute of limitations, which entail a substantial violation of the articles mentioned therein and, in particular, the following:

- a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

- b) The processing of personal data without any of the lawful processing conditions established in Article 6 of Regulation (EU) 2016/679.

(...)

- h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this Organic Law.”

VII

Sanction

Article 58.2 of the GDPR establishes:

“Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

- d) to order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time;

(...)

- i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case.”

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2.d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

With respect to the infringements of Articles 5.1.c) and 13 of the GDPR, considering the proven facts, it is deemed that the sanction that should be imposed is an administrative fine.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;

- b) the intentionality or negligence in the infringement;

- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;

- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

- e) any previous infringement committed by the controller or processor;

- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
 - g) the categories of personal data affected by the infringement;
 - h) the manner in which the supervisory authority became aware of the infringement, in particular, whether the controller or processor notified the infringement and, if so, to what extent;
 - i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with those measures;
 - j) adherence to codes of conduct under Article 40 or to approved certification mechanisms under Article 42;
 - k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
- In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have included the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

11/12

The balance of the circumstances considered, regarding the infringements committed by violating the provisions established in Articles 5.1 c) and 13 of the GDPR, allows for the imposition of a fine of 300 euros (three hundred euros), and another fine of 300 euros (three hundred euros), respectively.

VIII

Conclusion

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on Mr. B.B.B., with NIF ***NIF.1:

For an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED euros).

For an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED euros).

SECOND: TO NOTIFY this resolution to Mr. B.B.B.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the

Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

12/12

Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

938-250923

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es